

## 26STCV07122 26STCV07122

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Case Number: 26STCV07122 Hearing Date: August 10, 2026 Dept: 413

### TENTATIVE RULING

HEARING DATE: 08/10/2026

CASE NUMBER: 26STCV07122

CASE NAME: DULCE GARCIA vs BELLA + CANVAS LLC, et al.

MOVING PARTY: Defendants Bella + Canvas LLC ,  
Alo LLC, and Bella + Canvas Holdings

OPPOSING PARTY: Plaintiff Dulce Garcia

PROCEEDING: Motion to compel arbitration and stay proceedings

RULING SUMMARY: Defendants Bella + Canvas LLC; Alo,

LLC; Bella + Canvas Holdings; Color Image Apparel, Inc.; and Jacqueline Chavez

Motion to Compel Arbitration and Stay Proceedings is granted. The action is stayed pending completion of the arbitration. The Court sets an Order to

Show Cause re Status of Arbitration for \_\_\_\_\_, 2026, at 8:30AM.

### Background

On March 5, 2026, plaintiff Dulce

Garcia ("Plaintiff") filed a Complaint against defendants Bella + Canvas LLC ("B+C");

Alo, LLC ("Alo"); Bella + Canvas Holdings ("B+C Holdings"); Color Image

Apparel, Inc. ("Color Image"); and Jacqueline Chavez ("Chavez," and,

collectively with the other defendants, "Defendants"), alleging 16 causes of

action for (1) Disability/Medical Condition Discrimination in Violation of FEHA against B+C, Alo, B+C Holdings, and Color Image (collectively "Employer Defendants"); (2) Failure to Accommodate/Engage in a Good Faith Interactive Process in Violation of FEHA against Employer Defendants; (3) Association Based Discrimination in Violation of EFHA against Employer Defendants; (4) Interference with CFRA Rights and Retaliation for Taking/Requesting CFRA Leave in Violation of FEHA against Employer Defendants; (5) Retaliation for Requesting Accommodations/Opposing Practices Forbidden by FEHA against Employer Defendants; (6) Hostile Work Environment in Violation of FEHA against Defendants; (7) Failure to do Everything Reasonably Necessary to Prevent Discrimination, Harassment, and Retaliation from Occurring in Violation of FEHA against Employer Defendants; (8) Interference and Retaliation for Taking/Requesting Kin Care against Employer Defendants; (9) Interference and Retaliation for Taking/Requesting Paid Sick Leave against Employer Defendants; (10) Failure to Provide Meal and/or Rest Breaks in Violation of Lab. Code and Wage Orders against Defendants; (11) Failure to Properly Pay All Wages Owed, Including Overtime Wages in Violation of Lab. Code and Wage Orders; (12) Wrongful Termination/Adverse Employment Action in Violation of Public Policy against Employer Defendants; (13) Retaliation for Whistleblowing Under Lab. Code § 1102.5 against Employer Defendants; (14) Negligent Hiring and Retention against Employer Defendants; (15) Intentional Infliction of Emotional Distress ("IIED") against Defendants; and (16) Violation of Bus. and Prof. Code §§ 17200, et seq. against Employer Defendants.

Plaintiff

alleges that Employer Defendants were her joint employers and Chavez was one of her supervisors. Plaintiff contends that, during her employment, she developed various disabilities for which she needed accommodation as well as the disabilities/medical conditions of her family members, took legally protected leave, put Defendants on notice, and was denied her requested accommodations. Plaintiff alleges that, in engaging in this conduct, Defendants subjected her to discrimination, and harassment, interfered with legally protected leave, and created a hostile work environment.

On

April 21, 2026, Defendants filed this Motion to Compel Arbitration and Stay Proceedings ("Motion to Compel"). On

July 28, 2026, Plaintiff filed her Opposition. On August 3, 2026, Defendants filed their Reply.

## LEGAL

### STANDARD

California law incorporates many of the basic policy objectives contained in the Federal Arbitration Act, including a presumption in favor of arbitrability. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 971-72.) Section 1281.2 of the Code of Civil Procedure authorizes a party to file a motion for an order compelling the parties to arbitrate a controversy. Under section 1281.2, the Court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines:

(a) The right to compel arbitration has been waived by the petitioner; or

(b) Grounds exist for the revocation of the agreement.

(c) A party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact. For purposes of this section, a pending court action or special proceeding includes an action or proceeding initiated by the party refusing to arbitrate after the petition to compel arbitration has been filed, but on or before the date of the hearing on the petition. This subdivision shall not be applicable to an agreement to arbitrate disputes as to the professional negligence of a health care provider made pursuant to Section 1295.

(Code Civ. Proc. § 1281.2.)

Doubts as to whether an arbitration clause applies to a particular dispute are to be resolved in favor of sending the parties to arbitration. (*California Correctional Peace Officers Assn. v. State* (2006) 142 Cal.App.4th 198, 205.) The Court should order them to arbitrate unless it is clear that the arbitration clause cannot be interpreted to cover the dispute. (*Id.*; Code Civ. Proc. § 1281.2 [“ . . . unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for the revocation of the agreement”].) Unless the parties clearly and unmistakably provide

otherwise, the question of whether the parties agreed to arbitrate is to be decided by the court, not the arbitrator. (AT&T Technologies v. Communications Workers (1986) 475 U.S. 643, 649.)

The right to arbitration depends upon contract; a petition to compel arbitration is simply a suit in equity seeking specific performance of that contract. (Engineers & Architects Association v. Community Development Department (1994) 30 Cal.App.4th 644, 653.) There is no public policy favoring arbitration of disputes which the parties have not agreed to arbitrate. (Ibid.)

The party seeking to enforce the arbitration agreement bears the burden of proving the existence of a valid arbitration agreement. (Giuliano v. Inland Empire Personnel, Inc. (2007) 149 Cal.App.4th 1276, 1284; Code Civ. Proc. § 1281.2.) "With respect to the moving party's burden to provide evidence of the existence of an agreement to arbitrate, it is generally sufficient for that party to present a copy of the contract to the court. (Condee v. Longwood Mgt. Corp. (2001) 88 Cal.App.4th 215, 218; Cal. Rules of Court, Rule 3.1330 ["A petition to compel arbitration or to stay proceedings pursuant to Code of Civil Procedure sections 1281.2 and 1281.4 must state, in addition to other required allegations, the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference"].)

The trial court first decides whether an enforceable arbitration agreement exists between the parties and then determine whether the plaintiff's claims are covered by the agreement. (Omar v. Ralphs Grocery Co. (2004) 118 Cal.App.4th 955, 961.) In determining whether the parties actually agreed to arbitrate the dispute, general principles of California contract law help guide the court in making this determination. (Mendez v. Mid-Wilshire Health Care Center (2013) 220 Cal.App.4th 534, 541.)

Once petitioners allege that an arbitration agreement exists, the burden shifts to respondents to prove the falsity of the purported agreement. (See Condee, *supra*, 88 Cal.App.4th at 219.) If the existence of the agreement is challenged, "petitioner bears the burden of proving [the arbitration agreement's]

existence by a preponderance of the evidence” (Rosenthal v. Great Western Fin. Securities Corp. (1996) 14 Cal.4th 394, 413; see Espejo v. Southern California Permanente Medical Group (2016) 246 Cal.App.4th 1047, 1058-1060.)

The party opposing the motion to compel may present any challenges to the enforcement of the agreement and evidence in support of those challenges. [Citation]” (Baker v. Italian Maple Holdings, LLC (2017) 13 Cal.App.5th 1152, 1160.)

The party opposing the petition to compel arbitration bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. (Giuliano v. Inland Empire Personnel, Inc., supra, at ¶ 1284.) In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court’s discretion, to reach a final determination. (Id.)

## DISCUSSION

Both parties agree that the arbitration agreement at hand binds all Employer Defendants.

A.

Moving Defendants have shown the existence of an arbitration agreement.

Under both the Federal Arbitration Act (“FAA”) and California law, arbitration agreements are valid, irrevocable, and enforceable, except on such grounds that exist at law or equity for voiding a contract. (Winter v. Window Fashions Professions, Inc. (2008) 166 Cal.App.4th 943, 947.)

Here, Defendants present an At-Will Employment, Confidential Information, Invention Assignment, Arbitration Agreement (the “Employment Agreement”) which was used as part of Plaintiff’s onboarding. (Decl. of Sergio Vejar ¶ 9.) The Employment Agreement has plaintiff’s electronic signature, dated July 23, 2023 at 08:56 PDT (Id. ¶ 9 & Exh. B.) The arbitration agreement also includes the provisions for a class action waiver, procedure, remedy, administrative relief, and voluntary nature

of the agreement. (Id.)

The arbitration agreement was updated in December 2024. (Decl. of Sara Ku ("Ku Decl.") ¶ 5.) Plaintiff's signature is on the updated agreement, checked via DocuSign, showing a signing date of December 5, 2024. (See id. at ¶¶ 3-12.)

The current agreement reads, in pertinent part:

I agree that any and all controversies, claims, or disputes with anyone (including the Company and any employee, officer, director, shareholder, or benefit plan of the Company, in their capacity as such or otherwise), arising out of, relating to, or resulting from my employment with the Company or the termination of my employment with the Company, including any breach of this Arbitration Agreement, shall be subject to binding arbitration administered by JAMS pursuant to its Employment Arbitration Rules & Procedures ("JAMS Rules"), which are available at:

<https://www.jamsadr.com/rules-employment-arbitration/english>. The arbitrator shall administer and conduct any such arbitration in accordance with the Federal Arbitration Act, 9 U.S.C. § 1 et seq. ("FAA"), supplemented by the substantive law of the state in which I am last employed by the Company.

In addition to the above, disputes that I agree to arbitrate, and thereby agree to waive any right to a trial by jury, include but are not limited to any statutory claims under local, state, or federal law, including but not limited to claims under Title VII of the Civil Rights Act of 1964, the Americans with Disabilities Act of 1990, the Age Discrimination in Employment Act of 1967, the Older Workers Benefit Protection Act, the Sarbanes-Oxley Act, the Worker Adjustment and Retraining Notification Act, the Family and Medical Leave Act, claims of harassment, discrimination, and wrongful termination, claims for unpaid wages and related penalties, and any statutory or common law claims. Notwithstanding the foregoing, I understand that nothing in this Arbitration Agreement constitutes a waiver of my rights under Section 7 of the National Labor Relations Act (the "Act") (to the extent applicable). Additionally, this Arbitration Agreement does not require arbitration of sexual assault and sexual harassment disputes as defined by Section 401 of the FAA, or any other claims that cannot, as a matter of law, be subject to arbitration. I further understand that this Arbitration Agreement to arbitrate also applies to any disputes that the Company may have with me.

(Id.. Exh. F.)

Plaintiff does not dispute signing the Employment Agreement, which includes the arbitration agreement. Thus, a valid written arbitration agreement exists between the parties.

B.

The arbitration agreement is subject to the FAA.

The arbitration agreement states, in pertinent part: "The arbitrator shall administer and conduct any such arbitration in accordance with the Federal Arbitration Act, 9. U.S.C. § 1 et seq. ("FAA"), supplemented by the substantive law of the state in which I am last employed by the company." (Id.)

The parties have agreed that the arbitration agreement is governed by the FAA. The parties have further agreed that the arbitration agreement allows for the supplementation of substantive California law in this action as Plaintiff was last employed in the County of Los Angeles, California. (Complaint ¶ 18.)

C.

Unconscionability

The doctrine of unconscionability refers to "an absence of meaningful choice on the part of one of the parties together with contract terms which are unreasonably favorable to the other party." (Sonic-Calabasas A, Inc. v. Moreno (2013) 57 Cal.4th 1109, 1133.) It consists of both procedural and substantive components – "the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results." (Id.)

;

Both substantive and procedural unconscionability must be present to invalidate an arbitration agreement; however, they do not need to be present in the same degree. (Armendariz v. Found Health & Psychcare Services, Inc. (2000) 24 Cal.4th 83, 114; Parada

v. Superior Court (2009) 176 Cal.App.4th 1554, 1570.) “Essentially a sliding scale is invoked which disregards the regularity of the procedural process of the contract formation, that creates the terms, in proportion to the greater harshness or unreasonableness of the substantive terms themselves. In other words, the more substantively unconscionable the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (Armendariz, supra, (2000) 24 Cal.4th 83 at 114.)

;

“The party resisting arbitration bears the burden of proving unconscionability.” (Pinnacle Museum Tower Association v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 247.)

1.

Procedural Unconscionability

Plaintiff asserts that the arbitration is a contract of adhesion. That an arbitration agreement is adhesive is sufficient to establish only some degree of procedural unconscionability. (Sanchez v. Valencia Holding Co., LLC (2015) 61 Cal.4th 899, 915.) “By itself, an adhesion contract may present a low or modest degree of procedural unconscionability, but that can ‘rise[] to a moderate level’ when the party drafting the agreement fails to provide a copy of the applicable arbitration rules.” (Nelson v. Dual Diagnosis Treatment Center, Inc. (2022) 77 Cal.App.5th 643, 660 [internal citations omitted].)

In support of her argument against arbitration, Plaintiff emphasizes an email transmitting the arbitration agreement. The email stated: “If you do not sign the documents by this time, your decision to continue to work for BELLA+CANVAS after December 30, 2024 will demonstrate your consent for the new and/or updated policies and agreements.” (Opp. at p. 6.) This wording simply emphasizes the adhesive nature of the contract. Moreover, conditioning continued employment on agreement to arbitration does evidence implied consent to such agreements. (Diaz v. Sohnen Enterprises (2019) 34 Cal.App.5th 126, 130 [“When an employee continues his or her employment after notification that an agreement to arbitration is a condition of continued employment, that employee has impliedly consented to the arbitration agreement. [Citations.]”]; Mar v. Perkins

(2024) 102 Cal.App.5th 201, 205 [“The Sierra defendants are correct that where an employer modifies its employment policy to require employees to arbitrate their disputes and clearly communicates to employees that continued employment will constitute assent to an arbitration agreement, the employees will generally be bound by the agreement if they continue to work for the company. However, where, as here, the employee promptly rejects the arbitration agreement and makes clear he or she refuses to be bound by the agreement, there is no mutual assent to arbitrate. We affirm.”].)

Plaintiff also argues oppression due to her inability to negotiate the agreement, which was drafted by Defendants and used by Defendants for all employees on a pre-printed form, and contained unilateral modification and termination terms. In support of this argument, Plaintiff cites *Martinez v. Master Protection* (2004) 118 Cal.App.4th 107 (“Martinez”). But Martinez’s holding that an adhesive contract is unconscionable does not conflict with the many authorities that hold that adhesion constitutes a low or modest degree of unconscionability. Further, the arbitration agreement in Martinez had other notable issues of substantive unconscionability. (Martinez, supra, 118 Cal.App.4th at 115-18.) Plaintiff’s argument based on *Fittante v. Palm Springs Motors, Inc.* (2003) 105 Cal.App.4th 708 (“Fittante”) is unavailing for the same reasons. Further, the Fittante Court held: “Describing a contract as one of adhesion does not, however, affect its enforceability. Rather, an adhesion contract remains fully enforceable unless (1) the provision falls outside the reasonable expectations of the weaker party, or (2) the provision is unduly oppressive or unconscionable.” (Id. at 722.)

Plaintiff’s citation to *Galen v. Redfin Corp.* (2014) 227 Cal.App.4th 1525 is disregarded as this particular opinion was superseded when the Supreme Court granted review on November 12, 2014. (See *Galen v. Redfin Corp.* (2014) 337 P.3d 493.)

The Court addresses unilateral modification and termination terms of the agreement below.

Accordingly, the arbitration agreement has only a low or moderate level of procedural unconscionability.

2.

Substantive Unconscionability

Plaintiff argues that the unilateral modification and termination terms make the agreement illusory under *Peleg v. Neiman Marcus Group, Inc.* (2012) Cal.App.4th 1425 (“*Peleg*”). *Peleg* states the following to determine the illusory nature of an arbitration agreement with unilateral modification provisions:

Under the FAA, federal courts have held that an arbitration agreement is not illusory if the employer's right to amend, modify, or terminate the agreement is restricted so that a contract change excludes all claims that have accrued or of which the employer has knowledge. (See, e.g., *Carey*, supra, 669 F.3d at p. 209, fn. 4 [where contract change made pursuant to unilateral modification provision takes effect upon notice, arbitration agreement is enforceable if change does not apply to disputes arising before notice]; *Morrison*, supra, 517 F.3d at pp. 254, 257 [arbitration agreement not illusory if it provides that amendment by employer is inapplicable to claims arising out of events occurring before amendment's effective date and to claims known to employer before effective date]; *Hardin v. First Cash Financial Services* (10th Cir. 2006) 465 F.3d 470, 478 [arbitration agreement not illusory because it provided that employer could not “amend the Agreement if it has actual notice of a potential dispute or claim, nor may it terminate the Agreement as to any claims which arose prior to the date of termination”]; *Seawright v. American General Financial Services* (6th Cir. 2007) 507 F.3d 967, 974–975 [employer reserved right to terminate arbitration program at any time but agreed to be bound by program “as to all known disputes arising before the date [of] termination”]; *Melton v. Philip Morris Inc.* (9th Cir. 2003) 71 Fed.Appx. 701, 703–704 [arbitration agreement not illusory because employer could not amend agreement as to “prior disputes” and had agreed to apply amendment or termination “only prospectively”]; see also *Sisneros v. Citadel Broadcasting Co.* (2006) 140 N.M. 266, 268, 274–275 [142 P.3d 34] [deciding, as a matter of state law, that arbitration agreement was not illusory because employer “[gave] up its right to change or terminate its agreement to arbitrate disputes upon accrual of an employee's claim”].)

(Id. at 1462.)

The arbitration agreement here provides, in pertinent part: “. . . I will be bound by any modification as to disputes that arise on or after the

effective date of the modification.” (Ku Decl., Exh. F at No. 6.) The Court finds that this provision does not render the arbitration agreement illusory.

Plaintiff next argues that there is a lack of mutuality as the arbitration agreement demands that Plaintiff arbitrate any and all claims between herself and Defendants and “any employee, officer, director, shareholder, or benefit plan of the Company, in their capacity as such or otherwise,” and those individuals are not bound to this agreement. (Opp. 11:11-12:4.)

Plaintiff relies on *Cook v.*

*University of Southern California* (2024) 102 Cal.App.5th 312 (“Cook”) for this argument. Cook focused on arbitration agreements that would bind an individual to arbitrate claims against the defendant indefinitely, including claims not arising from employment, and lacked mutuality. (Cook, *supra*, 102 Cal.App.5th at 325 [the agreement “ ‘shall survive the termination of Employee’s employment, and may only be revoked or modified in a written document that expressly refers to the “Agreement to Arbitrate Claims” and is signed by the President of the University.’ ”], 326 [“The agreement requires Cook to arbitrate any and all claims she may have against USC ‘or any of its related entities, including but not limited to faculty practice plans, or its or their officers, trustees, administrators, employees or agents, in their capacity as such or otherwise.’ However, the agreement does not require USC’s ‘related entities’ to arbitrate their claims against Cook.”].) Two out of the three determinative factors in Cook do not exist here. With regard to the third factor, mutuality, the language of the arbitration agreement is mutual: the arbitration agreement applies to “any and all” controversies, claims, or disputes with anyone, “including the Company and any employee, officer, director, shareholder, or benefit plan of the Company, in their capacity as such or otherwise,” arising out of or resulting from Plaintiff’s employment. (Ku Decl., Exh. F at No. 1.)

Plaintiff asserts that the arbitration agreement contains a waiver of class action and Private Attorney General Act (“PAGA”) claims. Both parties are in agreement that *Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639 (“Viking River”) applies in this case. Plaintiff argues that the exclusion of representative actions renders the entire agreement unconscionable. Defendants argue that they have followed *Viking River* and *Adolph v. Uber Technologies, Inc.* (2023) 14 Cal.5th 1104 (“Adolph”).[1]

In Adolph,  
the California Supreme Court held that, “[w]here a plaintiff has brought a PAGA action comprising individual and non-individual claims, an order compelling arbitration of the individual claims does not strip the plaintiff of standing as an aggrieved employee to litigate claims on behalf of other employees under PAGA.” (Adolph, supra, 14 Cal.5th at 1114.) The waiver section of the arbitration agreement reads in totality:

I UNDERSTAND AND AGREE THAT ANY PROCEEDINGS TO RESOLVE ANY DISPUTE WILL BE CONDUCTED SOLELY ON AN INDIVIDUAL BASIS, TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, APPLYING THE FAA. BOTH I AND THE COMPANY EXPRESSLY WAIVE ANY RIGHT TO COMMENCE OR UTILIZE CLASS OR COLLECTIVE ACTION PROCEDURES, OR REPRESENTATIVE ACTION PROCEDURES ON BEHALF OF OTHER INDIVIDUALS, IN ASSERTING A CLAIM SUBJECT TO THIS ARBITRATION AGREEMENT, TO THE MAXIMUM EXTENT PERMITTED BY LAW.

THIS ARBITRATION AGREEMENT DOES NOT PREVENT THE ARBITRATOR FROM HAVING JURISDICTION TO DECIDE A REPRESENTATIVE CLAIM BROUGHT BY ME UNDER THE CALIFORNIA PRIVATE ATTORNEYS GENERAL ACT SEEKING RELIEF ONLY FOR LABOR CODE VIOLATIONS I SUFFERED (I.E. AN INDIVIDUAL PAGA CLAIM). THE ARBITRATOR SHALL MAKE THE DETERMINATION OF WHETHER I AM AN “AGGRIEVED EMPLOYEE” AS THAT TERM IS USED UNDER CALIFORNIA LAW. NO ARBITRABLE CLAIMS WILL BE COMBINED, JOINED OR CONSOLIDATED WITH OTHERS WITHOUT THE PRIOR WRITTEN CONSENT OF ALL AFFECTED PARTIES.

(Ku Decl.,  
Exh. F at No. 2.)

The class action waiver heavily emphasizes that it applies only to the “maximum extent permitted by law.” Thus, to the extent Adolph prevents Plaintiff’s waiver of any representative PAGA claims, arbitration agreement would not apply.

The Court finds that the arbitration agreement is not substantively unconscionable.

Conclusion

Defendants

Bella + Canvas LLC; Alo, LLC; Bella + Canvas Holdings; Color Image Apparel, Inc.; and Jacqueline Chavez Motion to Compel Arbitration and Stay Proceedings is granted. The action is stayed pending completion of the arbitration. The Court sets an Order to Show Cause re Status of Arbitration for \_\_\_\_\_, 2026, at 8:30AM.

Date: 08/10/2026 \_\_\_\_\_

William  
E. Weinberger

Judge,  
Los Angeles Superior Court

[1]  
Galarsa v. Dolgen California, LLC (2023) 88 Cal.App.5th 639, which was cited by Plaintiff, explicitly stated that it was meant as guidance during the duration Adolph was pending. The Court, therefore, finds Adolph, not Galarsa, controlling.